

Airlines, Inc. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.];

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See the court's website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Plaintiff's failure to timely oppose Defendant's Motions is a deemed to be her consent to the granting of all three motions.

Ruling

The Court grants the following motions and their respective sanctions:

1. September 8, 2025: Defendant's Motion to Compel Responses to Request for Production of Documents and Things (Set Two) as Against Plaintiff as Heir and Successor in Interest to Alex Pollard and for Monetary Sanctions in the amount of \$1,522.95 for reasonable costs and attorney's fees. The Court will execute the proposed order lodged on September 16, 2025.
2. November 17, 2025 Motion for Orders 1) Deeming Admitted Truth of Facts as to Plaintiff and 2) Imposing Monetary Sanctions totaling \$1,772.95. The Court will execute the proposed order lodged on November 17, 2025.
3. Sanctions shall be paid no later than ten (10) days from the date of the hearing.

15. 9:01 AM CASE NUMBER: C25-00221

CASE NAME: GRAVES CONSTRUCTION GROUP SERVICES, INC. VS. ELITE MD, INC., A CALIFORNIA CORPORATION

***HEARING ON MOTION FOR DISCOVERY COMPEL ELITE MD, INC. FURTHER RESPONSES TO SPECIAL INTERROGATORIES. SET ONE**

FILED BY: GRAVES CONSTRUCTION GROUP SERVICES, INC.

TENTATIVE RULING:

Summary

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One, is **moot**, as set forth herein. Plaintiff's request for sanctions are **granted**.

Background

This case involves a claim by Plaintiff for breach of contract regarding certain tenant improvements.

Plaintiff and Cross-Defendant Graves Construction Group Services, Inc. ("Plaintiff") alleges that it entered into a contract to perform certain improvements to Defendants and Cross-complainants Elite MD, Inc, Sonia Bansal and Vivek Bansal's ("Defendants") place of business located at 4185 Blackhawk Plaza, Danville CA. Plaintiff claims that Defendants breached their contract as set forth in the complaint filed on January 24, 2025.

On August 6, 2025, Plaintiff served Special Interrogatories to Defendants, which were due September 5, 2025. Plaintiff granted an extension to September 23, 2025. No responses were provided. On September 29, 2025, Plaintiff's counsel "met and conferred" with Defendants' counsel, who agreed to serve responses no later than October 3, 2025. Plaintiff claims that the responses were evasive, incomplete and not code compliant.

On November 7, 2025, Plaintiff filed a Motion to Defendant Elite MD, Inc's Further Responses to Special Interrogatories, Set One and Request for Sanctions in the amount of \$4,714.50. The Motion was supported by a Memorandum of Points and Authorities, Separate Statement, Declaration of Counsel Thomas Padian. Plaintiffs make this motion pursuant to Cal. Code of Civ. Proc. §§ 2030.300, 2030.210, 20230.220(a) and 2023.030.

On December 1, 2025, Defendants filed an opposition to the motion, claiming, essentially, that they have served supplemental responses that render this motion and the request for sanctions moot. The Motion asserts that Plaintiff served over 98 special interrogatories, which necessitated additional time. Defendants also claim that Plaintiffs did not provide any courtesies and extensions requested by Defendants' counsel.

A review of the 111 page separate statement shows that Plaintiffs provided identical responses to each of the special interrogatories, Nos. 1- 91: "Responding Party contends that this Interrogatory is premature, as Responding Party has not completed its investigation or discovery in this matter. Responding Party has not yet completed its examination of the damages caused by Plaintiff and its subcontractors; ongoing work is continuing and discovery is continuing. Responding Party reserves the right to supplement its response." Following the filing of this Motion, Defendants provided "Supplemental Responses" on November 26, 2025. A review of Defendants' separate statement demonstrates that the supplemental answers provide missing information.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or

intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are "incomplete or evasive," or an "objection to an interrogatory is without merit or too general." When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Under Section 2030.300(d): The court shall impose a monetary sanction ...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally.

Applied here, the Court finds that Defendants' initial "boilerplate" answers are akin to "boilerplate objections" which fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c). It is wholly improper for a party to respond to discovery by making boilerplate responses, then refusing to provide further answers until a motion to compel required compliance. California's Discovery act was "intended to take the 'game' element out of trial preparation," considering that "a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise." (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Although Defendants filed supplemental answers, they did so 19 days after Plaintiff's motion was filed. Such action is conducted by Defendant's counsel without substantial justification. Cal. Rules of Court Rule 3.1348 permits this Court to award sanctions against Defendants where "the requested

discovery was provided to the moving party after the motion was filed.” Accordingly, the Court finds that there is good cause in granting this motion.

Ruling

1. Plaintiff’s Motion to Compel Further Responses to Special Interrogatories, Set One, is **moot**.
2. Plaintiff’s Motion for Sanctions are **granted**. Sanctions in the amount of \$4,714.50 are awarded to Plaintiffs by Defendants and shall be paid within thirty (30) days from the date of this order.
3. Plaintiff shall prepare and e-file a proposed order that conforms to this ruling and shall file it within five (5) days from the date of this hearing.

16. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

***HEARING ON MOTION FOR DISCOVERY ORDER DEEMING ADMITTED TRUTH OF FACTS AS TO PLAINTIFF**

FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC

TENTATIVE RULING:

See Line 14, above.